LOAN AGREEMENT

Oakmont Villas | Sacramento, CA

Borrower	Oakmont Villas Owner LLC
Lender	Summit Trail Credit Union
Collateral	Oakmont Villas
Loan Amount	$31,570,000
Rate	5.38% Fixed
Closing Date	May 15, 2021

1. Loan and Interest. Lender agrees to make a loan to Borrower in the principal amount of $31,570,000. The loan shall bear interest at a fixed rate of 5.38% per annum, calculated on an Actual/360 basis. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

2. Maturity and Amortization. The loan matures 7 years from the Closing Date. Monthly payments shall be interest-only for the first 44 months and thereafter based on a 30-year amortization schedule. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. Time is of the essence with respect to each and every provision of this instrument.

3. Prepayment. Borrower may prepay the loan in whole subject to yield maintenance or defeasance, except during the open period at the final ninety days before maturity. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

4. Collateral. The loan is secured by a first-lien mortgage on Oakmont Villas, an assignment of leases and rents and a security interest in all personal property. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

5. Financial Covenants. Borrower shall maintain a minimum debt service coverage ratio of 1.25x and a maximum loan-to-value ratio of 65%, tested quarterly. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

6. Reserves and Escrows. Borrower shall fund monthly escrows for real estate taxes, insurance premiums and replacement reserves of $250 per unit annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

7. Reporting Requirements. Borrower shall deliver quarterly operating statements and rent rolls within forty-five days after quarter-end and audited annual financials within one hundred twenty days after year-end. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CA. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Oakmont Villas Owner LLC

By: Hannah Vasquez Title: Manager Date: 05/15/2021

_____

Victor Foster

By: Tina Ito Title: Authorized Signatory Date: 05/15/2021

Exhibit A - Property

Oakmont Villas, 2947 Industrial Street, Sacramento, CA 90946. Parcel containing approximately 29.27 acres, together with all improvements thereon.

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